

originally limited by subsection (2) of the said section eleven.

2. This Act may be cited as the Land Drainage (Scotland) Act, 1935, and the Land Drainage (Scotland) Act, 1930, and this Act may be cited together as the Land Drainage (Scotland) Acts, 1930 and 1935. Citation.

CHAPTER 20.

An Act to amend section four of the Vagrancy Act, 1824, so far as it relates to persons wandering abroad and lodging in barns or other places. [6th June 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) So much of section four of the Vagrancy Act, 1824, as enacts that a person wandering abroad and lodging in any barn or outhouse, or in any deserted or unoccupied building, or in the open air, or under a tent, or in any cart or waggon, not having any visible means of subsistence, and not giving a good account of himself, shall be deemed a rogue and vagabond within the meaning of that Act, shall have effect subject to the following provisions of this section. Amendment
of 5 Geo. 4.
c. 83, s. 4.

(2) The words “not having any visible means of subsistence” in the said enactment are hereby repealed.

(3) A person wandering abroad and lodging as aforesaid shall not be deemed by virtue of the said enactment a rogue and vagabond within the meaning of the said Act unless it is proved either—

(a) that, in relation to the occasion on which he lodged as aforesaid, he had been directed to a reasonably accessible place of shelter and failed to apply for, or refused, accommodation there;

- (b) that he is a person who persistently wanders abroad and, notwithstanding that a place of shelter is reasonably accessible, lodges or attempts to lodge as aforesaid; or
- (c) that by, or in the course of, lodging as aforesaid he caused damage to property, infection with vermin, or other offensive consequence, or that he lodged as aforesaid in such circumstances as to appear to be likely so to do.

In this subsection the expression “a place of shelter” means a place where provision is regularly made for giving (free of charge) accommodation for the night to such persons as apply therefor.

(4) The reference in the said enactment to a person lodging under a tent or in a cart or waggon shall not be deemed to include a person lodging under a tent or in a cart or waggon with or in which he travels.

Short title
and extent.

2.—(1) This Act may be cited as the Vagrancy Act, 1935.

(2) This Act shall not extend to Scotland or to Northern Ireland.

CHAPTER 21.

An Act to make provision for the winding up of the system of land purchase in Northern Ireland established by the Land Purchase Acts and other enactments in that behalf, for the abolition of the Land Purchase Commission, Northern Ireland, and the transfer of functions exercisable under the said Acts and other enactments, and for purposes incidental to the purposes aforesaid and consequential thereon. [6th June 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present